

Minnesota Digital Due Process Act — One Page Summary

Problem Government agencies increasingly use automated systems and predictive models that can materially affect individuals (benefits, licenses, investigations) without transparency or meaningful human review.

Core principle (ask) No material adverse governmental action shall be taken solely on the basis of an automated prediction, algorithmic determination, or risk score. Material decisions must be subject to meaningful human review and independent supporting evidence.

Why it matters - Protects due process and equal protection principles in a data-driven era. - Preserves human accountability while allowing agencies to use AI as a tool.

Key provisions - Prohibits sole reliance on automated outputs for material adverse actions. - Requires human review with independent supporting evidence. - Requires notice when an automated system materially contributed to a decision. - Requires recordkeeping to permit oversight and audit.

Two short examples 1) Benefits denial: An automated fraud-score flags a claimant; the claimant must receive notice and human review before benefits are terminated. 2) Investigative prioritization: Predictive policing can inform leads, but no arrest or sanction shall be based solely on a prediction.

Ask (for legislators) - Sponsor or co-sponsor the Minnesota Digital Due Process Act. - Request a short briefing for committee staff.

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